

23CHCV00963 23CHCV00963

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 23CHCV00963 Hearing Date: September 18, 2026 Dept: F47

Dept. F47

Date: 9/18/26

Case #23CHCV00963

MOTION TO DISMISS

Motion filed on 4/15/26

MOVING PARTY: Defendants Amaury

Jose T. Agoncillo and Ventura Medtech Solutions, LLC

RESPONDING PARTY: Plaintiffs

Julius Tomines, Jonalyn Tomines, Clarence Belisario and Caltronics Medical Devices, LLC

NOTICE: ok

RELIEF REQUESTED: An order dismissing
this action pursuant to CCP 583.210 and 583.250.

RULING: The motion is granted.

SUMMARY OF FACTS &
PROCEDURAL HISTORY

On 4/5/23, Plaintiffs Julius

Tomines, Jonalyn Tomines, Clarence Belisario and Caltronics Medical Devices, LLC (collectively, Plaintiffs) filed this action against Defendants Amaury Jose T. Agoncillo and Ventura Medtech Solutions, LLC (collectively, Defendants) alleging causes of action for: (1) Breach of Contract, (2) Breach of Contract, (3) Fraudulent Misrepresentation, (4) Conversion, (5) Breach of Implied Covenant of Good Faith and Fair Dealing, (6) Money Had and Received and (7) Accounting.

Although no proofs of service for the summons and complaint had been filed, on 10/15/25, Defendants filed a motion to quash service of the summons upon Defendants. On 4/15/26, the Court granted the unopposed motion to quash. (See 4/15/26 Minute Order). On 4/15/26, Defendants filed and served the instant motion to dismiss this action pursuant to CCP 583.210 and 583.250.

Still, no proofs of service for the summons and complaint have been filed.

No opposition or other response to the motion has been filed.

ANALYSIS

CCP 583.210(a) provides:

"The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed."

CCP 583.250 provides:

"(a) If service is not made in an action within the time prescribed in this article:

(1) The action shall not be further prosecuted and no further proceedings shall be held in the action.

(2) The action shall be dismissed by the court on its own

motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties.

(b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute."

The complaint was filed on 4/5/23 and, more than three years later, Plaintiffs have failed to file a proof of service showing that the summons and complaint were served on Defendants. Therefore, dismissal of the action is required.

CONCLUSION

The motion is granted.